

		Code Civ. Proc., § 1908 does not preclude discovery or limit the scope of discovery. Rather, Code Civ. Proc., § 2017.010 is quite broad and provides that “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” Moreover, it is Plaintiffs who brought this action alleging elder abuse, undue influence, incapacity, etc. in support of their claims of quiet title and requests for damages for conversion and negligence. Given this, the Court finds that Defendant has shown good cause to compel further responses. Defendant’s separate request for the Court order Plaintiffs to provide medical authorizations for Decedent’s records is denied. There is no legal authority cited that provides that a Court can compel a party to sign such authorizations. Plaintiffs are ordered to serve further responses within 20 days of service of notice of this ruling. Defendant shall give notice.
10	Trinh vs. Chan 2023-01342035	Motion for Summary Judgment and/or Adjudication Continued to 10/05/2026
11	Valdez vs. Physician Partners of America, LLC 2024-01437568	Motion for Summary Judgment and/or Adjudication Off Calendar
12	Wilson vs. Dan 2025-01523063	Motion for Order Requiring Plaintiffs to Furnish Security Bond Defendants Claudiu Dan, Ariel Corral, Julio Lopez, Martin Martinez, and Samuel Membreno’s renewed motion for order requiring Plaintiffs to furnish security bond is denied. <u>Procedural Issues</u> The Court notes that there are valid objections to the length of the “motion” and Defendants’ supporting evidence, not to mention the tardiness of the reply papers. However, in the interests of justice, and for sufficient “good cause,” the Court exercises its discretion to

consider these documents. The Court sustains Plaintiffs' objections, nos. 4 and 8, to Defendants' evidence, which, in any event, were not material to the disposition of the motion.

Merits

Defendants renew the motion, under Corporations Code section 800, for an order requiring Plaintiffs to furnish a security bond in the amount of \$50,000. (ROA 284.) Under CCP section 1008, subdivision (b), "a party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (b).)

The Court finds the renewed motion does not warrant a different ruling from the 03/09/26 minute order (ROA 254), whereby the first motion for order requiring security bond was denied. Corporations Code section 800 provides, in relevant part, that, "at any time within 30 days after service of summons upon the corporation or upon *any defendant who is an officer or director of the corporation*, or held such office at the time of the acts complained of, *the corporation or the defendant* may move the court for an order, upon notice and hearing, requiring the plaintiff to furnish a bond as hereinafter provided." (Corp. Code, § 800, subd. (c), emphasis added.) In ruling on the motion, the court "shall consider such evidence, written or oral, by witnesses or affidavit, as may be material (1) to the ground or grounds upon which the motion is based, or (2) to a determination of the probable reasonable expenses, including attorneys' fees, of the corporation and the moving party which will be incurred in the defense of the action." (Corp. Code, § 800, subd. (d).)

The Court notes that the corporation at issue, Westminster Bible Chapel of Those Who Meet In The Name Of The Lord Jesus Christ Alone (the "Church"), has never been made a defendant in this action, and is not designated the moving party on this motion. Although Defendants filed a purported "Corporation's Notice of Joinder ..." (ROA 301), there is no record of the Church being properly joined as a defendant in this action; nor does the Court's registrar of actions reflect the Church's status as a defendant in this case. Aside from the corporation, itself, the only other persons who may bring this motion is "any defendant who is an officer or director of the corporation, or held such office at the time of the acts complained of."

The By-Laws of the Church state, in relevant part, that “All persons having legal capacity who are members in good standing with [the Church] and having been approved for membership by the Board of Directors of this corporation shall be eligible for membership.” (ROA 284 [Exh. 2 – By-Laws at p. 1, § 3, emphasis added].)

The By-Laws further provide, with respect to “Special Meetings,” that “Special Meetings of membership may be called by the president or by any two directors or by any 15 active members of this corporation.” (By-Laws at p. 2, § 5.) While the “annual meeting ... shall be held on the third Sunday in April of each year...” (By-Laws at p. 1, § 4.)

In support of this motion, Defendants each submitted a declaration purporting to testify as to the legitimacy of the August 22, 2025 “Special Meeting/Annual Meeting,” whereby they were purportedly elected as the new board of the Church. Among other matters, Defendant Dan attests, “we distributed flyers on August 17, 2025 notifying all members of the August 24 Corporation Meeting.” (ROA 284 [Exh. 3—Dan Decl. at ¶ 19].) Defendant Corral attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as President and CEO by members of Westminster Bible Chapel.” (Exh. 4 [Corral Decl. at ¶ 16].) Defendant Lopez attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as Vice President by members of Westminster Bible Chapel.” (Exh. 5 [Lopez Decl. at ¶ 16].) Defendant Martinez attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as Treasurer/Chief Financial Officer by members of Westminster Bible Chapel.” (Exh. 6 [Martinez Decl. at ¶ 16].) Lastly, Defendant Membreno attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as Director of Outreach and Community Engagement by members of Westminster Bible Chapel.” (Exh. 6 [Membreno Decl. at ¶ 15].)

This evidence does not show why the court should reconsider or modify its prior ruling. The By-Laws expressly state that a Special Meeting may be called by “the president or by any two directors or by any 15 active members of this corporation.” Defendants have failed to show that the August 24, 2025 meeting was called by “the president,” “by any two directors,” or by “any 15 active members of this corporation.” Defendants have now had *multiple* opportunities to make this showing, and have not been able to. In other words, Defendants have failed to show that the August 24, 2025 meeting was called by “any 15 active members,” much less that those members were “in good standing with [the Church] and having been approved for membership by the Board of Directors,” as required by the By-

	Laws. Because there is no persuasive evidence that the August 24, 2025 meeting was legitimate, the actions taken on that date, whereby Defendants were purportedly elected as officers and directors, also do not appear to be valid. As such, this motion is denied. Plaintiffs shall give notice of the ruling. Case Management Conference
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